

		<u>Opposition to Motion</u> In opposition to this motion, Respondent claims that the motion for leave should be denied because Petitioner waited until several months after discovery of the new facts to make the amendments and because the amendments would necessitate additional discovery and costs. The court finds such arguments unpersuasive. Courts may permit amendments at any stage in the proceedings, up to and including trial, so long as there is no prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i>(2003) 109 Cal.App.4th 739, 761.) Mere proximity to trial is not a sufficient reason to deny leave to amend, particularly where the moving party is the plaintiff. (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 967.) Increased discovery and attorneys' fees are not sufficient "prejudice." As one appellate court explained: "it seems unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend." (<i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557.) Respondent has not shown any resulting prejudice that warrants denial of this motion. Nonetheless, the motion must be denied for reasons stated above. Before bringing any new motion for leave to amend, Petitioner is ordered to make a good faith attempt to meet and confer with Respondent as to whether the parties can reach a stipulation as to any amendments. Petitioner is ordered to give notice of this ruling.
01415738	Richardson - Trust	TENTATIVE RULING Case: Richardson - Trust 01415738 Calendar No.: 8 Date: 07/15/2026

**MOTIONS TO COMPEL FURTHER RESPONSES TO
DISCOVERY AND MOTION DEEM REQUESTS FOR
ADMISSION ADMITTED (ROAs 57, 61, 66, 69)**

Petitioner Ryan Swartout ("Petitioner") brings the following motions: (1) motion for an order compelling responses to form interrogatories set; (2) motion for an order compelling responses to special interrogatories set one; (3) motion to deem facts admitted in the requests for admissions set one; and (4) motion to compel responses to requests for production of documents set one. All foregoing motions are **GRANTED**.

The evidence before the court is that on 7/14/25, Petitioner's counsel propounded the following discovery on Respondent Bryce A. Richardson ("Respondent"): (1) form interrogatories set one; (2) special interrogatories set one; (3) requests for admissions set one; and (4) requests for production of documents set one. (Allen Decls., ¶ 10.) Responses to all the discovery requests were due 08/18/25. (Code Civ. Proc., § 2033.250; Code Civ. Proc., § 2030.260; Code Civ. Proc., § 2030.260; Code Civ. Proc., § 2031.260; Code Civ. Proc., § 1013.) Petitioner's counsel emailed Respondent on 10/17/25 to inquire about the discovery responses but did not receive any response. (Allen Decls., ¶ 11.) Respondent has failed to submit any responses to any of the discovery requests. (Allen Decls., ¶ 12.)

**I. MOTION TO COMPEL RESPONSES TO FORM
INTERROGATORIES (ROA 57)**

Code of Civil Procedure section 2030.290 states that "[i]f a party to whom interrogatories are directed fails to serve a timely response...(b) [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories."

Respondent has failed to serve any response to Form Interrogatories Set One. (Allen Decl., ¶ 12.)

The motion to compel responses is **granted**.

Pursuant to Code of Civil Procedure section 2030.290 (c), "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Code of Civil Procedure section 2023.030 states that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process... pay the reasonable expenses, including

attorney's fees, incurred by anyone as a result of that conduct."

The court finds the time spent on this motion and the hourly rate of Mr. Rodono to be reasonable, excepting that there was no opposition motion, and thus the hour of work expected to review it and draft a reply will not contribute to the total sum of the sanctions.

The court imposes monetary sanctions against Respondent Respondent Richardson in the amount of \$2,180 (\$545ph x 4 hours) in attorney's fees and \$60.00 in costs, for a total of **\$2,240.00**.

II. MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES (ROA 61)

Code of Civil Procedure section 2030.290 states that "[i]f a party to whom interrogatories are directed fails to serve a timely response...(b) [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories."

Respondent has failed to serve any response to Special Interrogatories Set One. (Allen Decl., ¶ 12.)

The motion to compel responses is **granted**.

Pursuant to Code of Civil Procedure section 2030.290 (c), "[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Code of Civil Procedure section 2023.030 states that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

The court finds the time spent on this motion and the hourly rate of Mr. Rodono to be reasonable, excepting that there was no opposition motion, and thus the hour of work expected to review it and draft a reply will not contribute to the total sum of the sanctions.

The court imposes monetary sanctions against Respondent Respondent Richardson in the amount of \$327 (\$545ph x .6 hours) in attorney's fees and \$60.00 in costs, for a total of **\$387.00**.

III. MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (ROA 66)

Code of Civil Procedure section 2033.280 (c) states that "the court shall make the order [to deem requests for admission admitted], unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220."

To date, Respondent has failed to serve any response to the requests for admission. (Allen Decl., ¶ 12.)

Based on the foregoing, the court **deems admitted** request for admissions set one.

Further, Code of Civil Procedure section 2033.280 (c) states that "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." Code of Civil Procedure section 2023.030 states that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

The court finds the time spent on this motion and the hourly rate of Mr. Rodono to be reasonable, excepting that there was no opposition motion, and thus that the hour of work expected to review it and draft a reply will not contribute to the total sum of the sanctions. (Allen Decl., ¶ 13.) The court imposes monetary sanctions against Respondent Richardson in the amount of \$381.5 (\$545ph x .7 hours) in attorney's fees and \$60.00 in costs, for a total of **\$441.50**.

IV. MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA 69)

Code of Civil Procedure section 2031.300 states that "[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it... (b) The party making the demand may move for an order compelling response to the demand."

To date, Respondent has failed to serve any response to the requests for production. (Allen Decl., ¶ 12.)

Based on the foregoing, the motion to compel responses to requests for production is **granted**.

		Further, Code of Civil Procedure section 2031.300 (c) states that "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Code of Civil Procedure section 2023.030 states that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." The court finds the time spent on this motion and the hourly rate of Mr. Rodono to be reasonable, excepting that there was no opposition motion, and thus that the hour of work expected to review it and draft a reply will not contribute to the total sum of the sanctions. (Allen Decl., ¶ 13.) The court imposes monetary sanctions against Respondent Richardson in the amount of \$ 272.5 (\$545ph x .5 hours) in attorney's fees and \$60.00 in costs, for a total of \$332.50. Counsel for Petitioner is ordered to give notice of ruling.
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